

26STCP01822 26STCP01822

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-22

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Case Number: 26STCP01822 Hearing Date: July 22, 2026 Dept: 512

HEARING

DATE: Weds., July 22, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: In

re Petition of LNV Assistance, LLC PET.

FILED: 05-12-26

CASE NUMBER: 26STCP01822

AM. PET.

FILED: 06-24-26

NOTICE:

NO

PROCEEDINGS: AMENDED MOTION FOR ORDER APPROVING TRANSFER OF STRUCTURED
SETTLEMENT PAYMENT RIGHTS PURSUANT TO CALIFORNIA INSURANCE CODE SECTION 10134
ET SEQ.

MOVING PARTY: Petitioner LVNV Assistance,
LLC

RESP. PARTY: None

AMENDED

MOTION FOR ORDER APPROVING TRANSFER OF STRUCTURED SETTLEMENT PAYMENT RIGHTS

(Cal. Ins. Code, § 10134, et seq.)

TENTATIVE RULING:

Petitioner LVNV

Assistance, LLC's Amended Motion for Order Approving Transfer of Structured Settlement Payment Rights Pursuant to California Insurance Code section 10134 et seq. is DENIED.

Further, the

Court sets a hearing date for the First Amended Petition for Approval for Transfer of Structured Settlement Payment Rights Pursuant to California Insurance Code section 10134 et seq for August 26, 2026 at 9:00 a.m. in Department 512 in the Stanley Mosk Courthouse.

Moving party is
ordered to give notice.

SERVICE:

[
] Proof of Service Timely Filed (CRC, rule 3.1300) NO

[
] Correct Address (CCP §§ 1013, 1013a) NO

[
] 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) NO

OPPOSITION: None

filed as of July 20, 2026 [] Late [X]

None

REPLY: None

filed as of July 20, 2026 []

Late [X] None

ANALYSIS:

I.

Background

On May 12, 2026,
Petitioner LVNV Assistance, LLC ("Petitioner") filed a Verified Petition for Approval for Transfer of Structured Settlement Payment Rights Pursuant to California Insurance Code section 10134 et seq. (the "Petition"). The Petition names the interested parties in this action as USAA Annuity Services Corporation and USAA Life Insurance Company. (Pet., p. 2.)

On May 14, 2026,
Petitioner filed a Motion for Order Approving Transfer of Structured Settlement Payment Rights Pursuant to California Insurance Code section 10134, et seq. (the "Motion").

On June 24,
2026, Petitioner filed the instant Amended Motion, an Amended Petition, and proof of service of the Amended Motion, Petition, and Amended Petition on the interested parties to the action.

No Opposition to
the Amended Motion has been filed.

II. Discussion

Here, the interested parties in
this matter – USAA Life Insurance Company, USAA Annuity Services Corporation, and Salvador Cossio Jr (see Am. Pet., p. 2; 6/24/26 Proof of Service) – have not appeared in this action. Thus, the Court does not have jurisdiction to make orders on the Motion.

Further, the Court finds the Amended
Motion was untimely filed and served by mail on the out-of-state interested parties USAA Annuity Services Corporation and USAA Life Insurance Company under Code of Civil Procedure section 1005. Indeed, the Amended Motion was not filed 16 court days and 10 calendar days prior to the instant hearing. (See Code Civ. Proc., § 1005, subd. (b).) To the
extent the Amended Motion relies on Insurance Code section 10139.5 to assert proper service of the Amended Motion, the Court finds this provision applies to petitions, not motions, and thus is inapt to the instant Amended Motion.

Additionally, California Rules of Court, rule 3.1113 requires that a party filing a motion must serve and file a supporting memorandum as part of the motion that contains a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced. (Cal. Rules of Court, rule 3.113, subds. (a), (b).) However, the Amended Motion merely contains a Notice of Amended Motion and accompanying exhibits, including the Amended Petition, and no memorandum.

Finally, the Court notes that Insurance Code section 10139.5 requires a party to file a petition, not a motion, for the request raised in the Amended Motion. (See Ins. Code, § 10139.5.)

For all these reasons, the Amended Motion is DENIED.

The Court also notes the substance and request of the Amended Motion appears duplicative of the Amended Petition. The Court reminds Petitioner to ensure that any filings with the Court are not duplicative of any other filings.

III.

Conclusion & Order

Based on the foregoing, Petitioner LVNV Assistance, LLC's Amended Motion for Order Approving Transfer of Structured Settlement Payment Rights Pursuant to California Insurance Code section 10134 et seq. is DENIED.

Further, the Court sets a hearing date for the First Amended Petition for Approval for Transfer of Structured Settlement Payment Rights Pursuant to California Insurance Code section 10134 et seq for August 26, 2026 at 9:00 a.m. in Department 512 in the Stanley Mosk Courthouse.

Moving party is ordered to give notice.